

24STCV30197 24STCV30197

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-06
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C08%2F06%2F2026
Source SHA-256: dbd9cf8b35c8e8bd2296552854886151e0684cc3caa9dd747253339f87d3ab3c

Case Number: 24STCV30197 Hearing Date: August 6, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

KODEL E. WHEATON,

Plaintiff,

vs.

LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24STCV30197

[TENTATIVE] ORDER OVERRULING DEMURRER

Dept. 506

8:30 a.m.

August 6, 2026

On September 25, 2025, Plaintiff

Kodel E. Wheaton filed a first amended complaint ("FAC") against Defendant Los Angeles County Metropolitan Transportation Authority.

On

October 27, 2025, Defendant filed a demurrer to the first and second causes of action.

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

Plaintiff's

allegations and Defendant's arguments are similar for both causes of action.

The

first cause of action alleges common carrier liability under Civil Code section 2100 et seq. "A carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise to that end a reasonable degree of skill." (Civ. Code, § 2100.) This statute "imposes upon all common carriers—public or private—a duty of utmost care and diligence to protect their passengers from assaults by fellow passengers." (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 791.) A carrier is liable for a passenger's assault "only where, in the exercise of the required degree of care, the carrier has or should have knowledge from which it may reasonably be apprehended that an assault on a passenger may occur, and has the ability in the exercise of that degree of care to prevent the injury." (Ibid.)

The

second cause of action alleges vicarious liability for Defendant's employee's negligence. A cause of action for negligence requires (1)

a legal duty owed to the plaintiff to use due care, (2) breach of that duty, (3) proximate causation, and (4) damages. (Artiglio

v. Corning Inc. (1998) 18 Cal.4th 604, 614; County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318 [citing Artiglio].) "A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Gov. Code, § 815.2, subd. (a).)

Plaintiff

alleges that while he was a passenger on Defendant's bus, an unknown individual "approached Plaintiff, shouted expletives, took his personal property, and stabbed Plaintiff." (FAC ¶ 7.) The assailant left the bus, but "the bus operator, for reasons unknown, despite having witnessed the initial assault upon plaintiff, moments later inexplicably allowed DOE1 to re-enter the bus whereupon DOE 1 resumed his attack on Plaintiff, inflicting serious personal injuries, physical and mental trauma." (FAC ¶ 7; see FAC ¶ 13.) "[A]fter the initial assault upon Plaintiff, [Defendant's bus operator] knew or should have known that the assailant was armed and posed a threat to Plaintiff and other passengers and should have refused to allow the assailant to enter and re-enter the bus." (FAC ¶ 8.) "[T]he bus operator failed to summon police protection, failed to render aid or summon medical care for Plaintiff and allowed the assailant to re-enter the bus." (FAC ¶ 12; see FAC ¶¶ 31, 36.) This sufficiently alleges the bus operator's knowledge that an assault or second assault on Plaintiff may occur, and the bus operator's lack of care when allowing the assailant to re-enter the

bus.

For

the first cause of action, Defendant argues that “the FAC alleges in conclusory terms that the operator ‘allowed’ Doe 1 to re-board ‘moments later,’ but does not allege how the assailant exited or re-entered, whether the doors were under the operator’s control at the relevant moment, whether the operator opened a closed door for him, how much time elapsed, or what preventive action could have been completed before the renewed attack.” (Reply at p. 2.)

For

the second cause of action, Defendant argues that there are no facts about “whether Doe 1 exited through an already-open door, whether he remained immediately adjacent to the doorway, whether the operator had closed or could safely close the doors, whether the operator opened the doors for Doe 1, whether the bus could safely depart, or the duration of the interval described only as ‘moments.’ Nor does it allege when the operator perceived that a knife had been used, as opposed to observing a brief altercation. Without those facts, the allegation that the operator ‘allowed’ re-entry is a conclusion that assumes the very issues of control, opportunity, and breach that Plaintiff must plead.” (Reply at p. 3.)

However,

“the complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

The

demurrer is overruled.

CONCLUSION

The

demurrer is OVERRULED.

Defendant

is ordered to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 6th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court